

Sample NDA Agreement

This is a sample agreement that could be used by customers of IT-Test to bind any of the IT-Test consortium members.

IT-Test consortium members are committed to the confidentiality of the information provided by our customers. We would be happy to consider any non-disclosure agreement developed by our customers.

Non-Disclosure Agreement

28th June 2001
Version 1.0

This **AGREEMENT** made on the _____ day of _____ ,
_____.
(day) (month) (year)

1.0 Scope of this Non-Disclosure Agreement

1.1 The parties

This Non-Disclosure Agreement exists between

and

(individual or company representative)

of

(individual or company's address)

1.2 Commencement date of the Non-Disclosure Agreement

This Non-Disclosure Agreement commences on the date indicated at the top of this page.

1.3 The purpose of the Non-Disclosure Agreement

This Non-Disclosure Agreement serves to protect confidential information and intellectual property developed for and owned by .

2.0 Confidential Information and Intellectual Property

2.1 Definition of Confidential Information and Intellectual Property

- Information about the affairs and activities of.
- Information about the business practices of , including but not limited to:
 - business processes,
 - development plans,
 - accounting,
 - strategic alliances.
- Information about clients, client list, and client requirements.
- Databases and software programs developed by or for .
- Ideas and development plans for new products and services, including, but not limited to:
 - Logic and process flowcharts,
 - Diagrammatic representations of functionality and any other aspect of the product and/or service,
 - Functional specifications.
 - Screen layouts and mock-ups.
 - Entity-relationship diagrams.
 - Formal code and other programming/pseudo-code documents.
 - Any other material that describes the ideas, function, operation, outcomes, of any products and services owned and / or currently being developed by .
- Information and Intellectual Property (as described above) developed by students/contractors at the direction of .

2.2 Form of Confidential Information and Intellectual Property

Confidential Information and Intellectual Property may be:

- Oral, written, electronic or other machine readable form;
- Translated from the original, modified, updated, or altered;
- Originated or obtained by .

3.0 Responsibilities to

3.1 You agree to the following conditions:

1. You acknowledge that information and intellectual property, owned by or developed for is the exclusive property of .
2. You will not disclose or attempt to disclose any Confidential Information and / or Intellectual Property owned by .
3. You will not use or attempt to use any of the Confidential Information and / or Intellectual Property owned by for your own benefit or for the benefit of any other person or entity.
4. You will not make or take any copies of any of the Confidential Information and / or Intellectual Property owned by .
5. You must ensure the secure custody of the Confidential Information and / or Intellectual Property owned by and must take all reasonable precautions to prevent the access, use, or disclosure of this information by third parties.
6. You must destroy or return any Confidential Information and Intellectual Property to at the direction of .
7. You continue to be bound by conditions 1 through to 7 (inclusively) until released in writing by .

EXECUTION

Executed as an Agreement in XX, Australia

SIGNED for and on behalf of (ACN) by its duly appointed officer	
SIGNED BY	(individual or company representative - signature) (Individual or company representative's name – in print)